

## Hem Chand Saini v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 January 2014 · Writ - C No. 3440 of 2014 · **SDO directed to process a permanent or temporary connection on occupancy and indemnity; writ later dismissed for want of prosecution (12 December 2025).**

### HEADNOTE

Long-occupying 122-C housing-site lessees, whose possession was protected by an earlier non-dispossession order, applied for electricity and offered an indemnity bond. The SDO would not entertain the applications because the leases were under litigation and title was unproved. The Division Bench treated the applications as still pending under the Electricity Supply Code, 2005, held that prima facie occupancy could support a permanent or temporary connection on indemnity, and directed the SDO to take steps to provide connections. The writ was dismissed for want of prosecution on 12 December 2025.

### FACTUAL SUMMARY

The petitioners held 1997 housing-site leases under section 122-C of the U.P. Zamindari Abolition and Land Reforms Act, 1950, built houses, and had lived there about seventeen years. The leases later fell into dispute; Writ Petition No. 15079 of 2010 yielded an interim order not to dispossess them. They applied for an electricity connection and offered an indemnity bond. The Sub-Divisional Officer would not entertain the applications because the leases were under litigation and they lacked proof of ownership or occupancy.

### REUSABLE CONSTRUCTIONS

1. Prima facie occupancy plus an indemnity bond as required by the rules supports grant of a permanent or temporary electricity connection under the Electricity Supply Code, 2005, even where the applicant's lease or title is under litigation. ¶ [unnumbered](#)
2. A new-connection application is not to be refused at the threshold merely for want of undisputed ownership or because the applicant's lease is in pending proceedings, where occupancy is shown and indemnity is offered. ¶ [unnumbered](#)

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.4

new connection on occupancy and indemnity despite disputed title

#### HOLDING

Where applicants are prima facie in occupancy of the premises and are prepared to furnish an indemnity bond, applications for a new electricity connection are to be entertained and considered under the Electricity Supply Code, 2005, and a permanent or temporary connection may be granted notwithstanding that the underlying lease is disputed and under litigation; want of proof of ownership is not a ground to refuse to process the application. The Sub-Divisional Officer was directed to take steps for providing the connections subject to the writ and the indemnity required by the rules. ¶ [unnumbered](#)

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — FINAL MERITS OF ENTITLEMENT TO THE NEW ELECTRICITY CONNECTION

The 21 January 2014 directions were interlocutory (show-cause; list after two weeks). On 12 December 2025 the Division Bench (Manoj Kumar Gupta, J. and Rajiv Lochan Shukla, J.) dismissed the writ for want of prosecution, none being present to press it. ¶ [3](#)

